

Rajeev Kumar Yadav v. State of U.P. and Another

Allahabad High Court · Division Bench · 22 May 2024 · 2024:AHC:92585-DB · WRIT - C No. - 17408 of 2024 · **Writ disposed; EE to decide under 6.5; restore on deposit**

HEADNOTE

On a writ seeking consideration of a billing objection, the Division Bench directed the Executive Engineer to decide the petitioner's 4 May 2024 application as one under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, within three weeks of communication of the order, and to restore supply pending that consideration if the petitioner deposits the disputed amount as per the recent bill.

FACTUAL SUMMARY

Rajeev Kumar Yadav invoked the writ jurisdiction of the Allahabad High Court seeking a direction that respondent no. 2 consider his application dated 4 May 2024 objecting to electricity bills issued by the department. Counsel for the Electricity Department submitted that the petitioner had a statutory remedy under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. Counsel for the petitioner then stated that the petitioner was ready to deposit the disputed amount and sought restoration of supply.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection under clause 6.5

HOLDING

The writ is disposed of by directing the Executive Engineer to decide the petitioner's 4 May 2024 billing-objection application by treating it as one under clause 6.5 of the Supply Code, 2005, within three weeks of communication of the order. If the petitioner deposits the disputed amount as per the recent bill, the respondents are to restore electricity supply pending that clause 6.5 consideration. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILLS

left to the Executive Engineer on the application treated as under clause 6.5 ¶ 3